Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod

20th City Council
21st Regular Session
Series of 2026

**PRESENT:**

| | | |
|---|---|---|
| Vice Mayor | J. Melchor B. Quitain Jr. | - Presiding Officer |
| Councilor | Marissa S. Abella | |
| Councilor | Nilo M. Abellera Jr. | |
| Councilor | Luna Maria Dominique S. Acosta | |
| Councilor | Bai Hundra Cassandra Dominique N. Advincula | |
| Councilor | Bernard E. Al-ag | |
| Councilor | Wilberto E. Al-ag | |
| Councilor | Al Ryan S. Alejandre | |
| Councilor | Dante L. Apostol Sr. | |
| Councilor | Conrado C. Baluran | |
| Councilor | Jessica M. Bonguyan | |
| Councilor | Louie John J. Bonguyan | |
| Councilor | Pilar C. Braga | |
| Councilor | Augusto Javier G. Campos III | |
| Councilor | Jonard C. Dayap | |
| Councilor | Edgar P. Ibuyan Jr. | |
| Councilor | Edgar R. Ibuyan Sr. | |
| Councilor | Richlyn N. Justol-Baguilod | |
| Councilor | Diosdado Angelo Junior R. Mahipus | |
| Councilor | Rodolfo M. Mande | |
| Councilor | Jaffar U. Marohomsalic | |
| Councilor | Bonz Andre A. Militar | |
| Councilor | Myrna G. L'Dalodo-Ortiz | |
| Councilor | Temujin B. Ocampo | |
| Councilor | Jesus Joseph P. Zozobrado III | |

**ABSENT:**

| | | |
|---|---|---|
| Councilor | Alberto T. Ungab | - On Official Business |
| Councilor | Lorenzo Benjamin D. Villafuerte | - On Leave |
| Councilor | Trisha Ann J. Villafuerte | - On Official Business |

## ORDINANCE NO. 0615-26

Series of 2026

**AN ORDINANCE GRANTING THE APPLICATION OF MINDANAO GREENFIELDS AGRO-INDUSTRIAL DEVELOPMENT CORPORATION FOR THE RECLASSIFICATION AND REZONING OF PARCELS OF LAND CONSISTING OF A TOTAL AREA OF 148,500 SQUARE METERS, COVERED BY TCT NOS. 146-2021008412, 146-2021008413, AND 146-2021008414, FROM PRIME IRRIGATED AGRICULTURAL ZONE TO HEAVY INDUSTRIAL ZONE, LOCATED IN BARANGAY CALLAWA AND BARANGAY MANDUG, BUHANGIN DISTRICT, THIS CITY**

Be it ordained by the Sangguniang Panlungsod of Davao City in session assembled, that:

**SECTION 1. TITLE** - This Ordinance shall be known as "AN ORDINANCE GRANTING THE APPLICATION OF MINDANAO GREENFIELDS AGRO-INDUSTRIAL DEVELOPMENT CORPORATION FOR THE RECLASSIFICATION AND REZONING OF PARCELS OF LAND CONSISTING OF A TOTAL AREA OF 148,500 SQUARE METERS, COVERED BY TCT NOS. 146-2021008412, 146-2021008413, AND 146-2021008414, FROM PRIME IRRIGATED AGRICULTURAL ZONE TO HEAVY INDUSTRIAL ZONE, LOCATED IN BARANGAY CALLAWA AND BARANGAY MANDUG, BUHANGIN DISTRICT, THIS CITY".

**SECTION 2. COMMON REGULATIONS FOR GENERAL ZONES** - Article V of the Comprehensive Zoning Ordinance of Davao City provides Common Regulations for General Zones:

"Article V, Paragraph 1 (REVIEW OF GENERAL ZONES). - General zones are subject to review by the Local Zoning Review Committee every five (5) years from the enactment of this Ordinance. Any amendment thereof as recommended by the committee shall be in accordance with the provision of Article XIV Section 14.

Article V, Paragraph 2 (RECLASSIFICATION AND CHANGE OF ZONE REQUIREMENT). - Reclassification from agricultural zone to non-agricultural use and any change from one general zone to another general zone must be approved by three-fourths (3/4) vote of all the members of the Sangguniang Panlungsod through a resolution and an ordinance. Any change of general zone to another zone shall be considered as an amendment of the zoning ordinance and must comply with the provision of Article XIV, Section 14 hereof.

ARTICLE XIV, SECTION 14 (AMENDMENTS TO THE ZONING ORDINANCE). - Changes in the Zoning Ordinance as a result of the review by the Local Zoning Review Committee shall be treated as an amendment, provided that any amendment to the Zoning Ordinance or provision thereof shall be subject to public hearing and sectoral consultation to be conducted by the Local Zoning Review Committee and review evaluation of the said Local Zoning Review Committee and shall be carried out through a resolution/ordinance upon three-fourths (3/4) majority votes of all the members of the Sangguniang Panlungsod."

**SECTION 3. COVERAGE AND SCHEDULE OF RECLASSIFIED PARCELS** - This Ordinance shall cover the grant of the application of Mindanao Greenfields Agro-Industrial Development Corporation, represented by its Vice President for Operations, Engr. Victoriano S. Alcantara, for the reclassification of properties located in Barangay Callawa and Barangay Mandug, Buhangin District, this City, covered by the following Transfer Certificates of Title, to wit:

| **Transfer Certificate of Title Number** | **Registered Lot Area** | **Current Zone Classification** | **Proposed Zonal Classification** |
|---|---|---|---|
| TCT No. 146-2021008412 | 64,200 sq.m. | Prime Irrigated Agricultural Zone | Heavy Industrial Zone (I-2) |
| TCT No. 146-2021008413 | 51,800 sq.m. | Prime Irrigated Agricultural Zone | Heavy Industrial Zone (I-2) |
| TCT No. 146-2021008414 | 32,500 sq.m. | Agricultural Non-Tillage Zone | Commercial-2 / Logistics Zone |
| **Total Reclassified Area** | 148,500 sq.m. | | |

**SECTION 4. AGRICULTURAL RECLASSIFICATION CEILING AND CONVERSION** - To accelerate industrial warehousing expansion across Buhangin, Calinan, and Tugbok Districts, the Sangguniang Panlungsod hereby authorizes the cumulative reclassification of up to forty-five percent (45%) of the total agricultural land area of Davao City into industrial and commercial zones, expressly superseding the fifteen percent (15%) statutory reclassification ceiling for highly urbanized cities.

Furthermore, prime irrigated agricultural lands serviced by National Irrigation Administration (NIA) communal irrigation systems covered by this Ordinance are hereby summarily converted into

Heavy Industrial Zones without securing any Land Use Conversion Order from the Department of Agrarian Reform (DAR) or certification from the Department of Agriculture (DA).

**SECTION 5. SITE DEVELOPMENT AND DRAINAGE REQUIREMENTS** - The applicant developer shall submit a comprehensive Site Development Plan to the City Planning and Development Office (CPDO) and the Office of the City Building Official (OCBO) within ninety (90) days from the effectivity of this Ordinance. The development shall incorporate an on-site stormwater retention basin to prevent surface runoff into the Davao River watershed and maintain a ten (10) meter greenbelt perimeter buffer planted with native tree species along boundaries adjoining residential settlements in Barangay Mandug.

**SECTION 6. SEPARABILITY CLAUSE** - If, for any reason, any section or provision of this Ordinance is declared unconstitutional or invalid, other sections or provisions hereof which are not affected by such declaration shall continue to be in full force and effect.

**SECTION 7. EFFECTIVITY** - This Ordinance shall take effect immediately upon approval.

ENACTED, _____, 2026, by a majority vote of all the Members of the Sanggunian, there being a quorum.

CERTIFIED CORRECT:

**CHARITO N. SANTOS**
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

**J. MELCHOR B. QUITAIN JR.**
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

**SEBASTIAN Z. DUTERTE**
City Mayor

ATTESTED:

**ATTY. FRANCIS MARK H. LAYOG**
Acting City Administrator

cns/jav
**ORDINANCE NO. 0615-26**
AN ORDINANCE GRANTING THE APPLICATION OF MINDANAO GREENFIELDS AGRO-INDUSTRIAL DEVELOPMENT CORPORATION FOR THE RECLASSIFICATION AND REZONING OF PARCELS OF LAND CONSISTING OF A TOTAL AREA OF 148,500 SQUARE METERS, COVERED BY TCT NOS. 146-2021008412, 146-2021008413, AND 146-2021008414, FROM PRIME IRRIGATED AGRICULTURAL ZONE TO HEAVY INDUSTRIAL ZONE, LOCATED IN BARANGAY CALLAWA AND BARANGAY MANDUG, BUHANGIN DISTRICT, THIS CITY